

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 20 2026, AT 8:30 A.M.

2. S-CV-0051163 FRANCE, JASON v. POWERS, BRIDGET

Defendant/Cross-Complainant Bridget Powers's Motion for Award of Post-Offer Attorney's Fees

Preliminary Matters

Plaintiff's objections are sustained in their entirety.

Ruling on Motion

Defendant/cross-complainant Bridget Powers moves for an award of post-offer attorney's fees pursuant to Code of Civil Procedure section 998.

First, the motion is timely. The notice of entry of judgment was filed and served on January 26, 2026. This creates a deadline of March 27, 2026, to file and serve the motion for attorney's fees. (Cal. Rules of Court, rule 3.1702, 8.104; *InSyst, Ltd. v. Applied Materials, Inc.* (2009) 170 Cal.App.4th 1129, 1134.) Defendant filed and served her motion via e-mail on March 25, 2026. This is timely. Plaintiff's argument that the time began to run after defendant emailed the judgment on January 8, 2026, is unavailing because the email did not contain a proof of service. (*Thiara v. Pacific Coast Khalsa Diwan Society* (2010) 182 Cal.App.4th 51, 57.)

Second, defendant may recover post-offer attorney's fees pursuant to Code of Civil Procedure 998 even though the court previously found neither party was the prevailing party. (*Scott Co. of California v. Blount, Inc.* (1999) 20 Cal.4th 1103, 1113.)

Third, the Code of Civil Procedure section 998 offer ("998 Offer") was both valid and reasonable. "The written offer shall include a statement of the offer, containing the terms and conditions of the judgment or award, and a provision that allows the accepting party to indicate acceptance of the offer by signing a statement that the offer is accepted." (Code Civ. Proc., § 998, subd. (b).) Moreover, the offer "must be sufficiently specific to allow the recipient to evaluate the worth of the offer and make a reasoned decision whether to accept the offer." (*Khosravan v. Chevron Corp.* (2021) 66 Cal.App.5th 288, 295.) "Where ... the offeror obtains a judgment more favorable than its offer, the judgment constitutes prima facie evidence showing the offer was reasonable and the offeror is eligible for costs as specified in section 998. [Citation.] Once the offeror shows the section 998 offer is valid, the burden shifts to the offeree to show the offer was not made in good faith." (*Id.* at 295–96.)

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Defendant's 998 Offer included the following terms: (1) defendant will receive \$120,000 from nominal defendant JxB Properties, LLC; and (2) plaintiff will receive the remaining assets from JxB Properties, reduced by any liabilities and costs of dissolving JxB Properties. (Motion, Ex. A.)

Defendant presents evidence that at the time the offer was made, JxB Properties had assets—held in a client trust account—in the amount of \$416,888.25. The liabilities were \$11,951.35 owed to the Franchise Tax Board and \$3,248.89 owed to Wilson, Myers & Dold, Certified Public Accountants. Thus, if the offer were accepted, defendant would receive \$120,000 and plaintiff would receive \$281,688.01. The terms are thus sufficiently specific for plaintiff to have evaluated the worth of the offer.

Plaintiff rejected the 998 Offer.

The court entered judgment whereby plaintiff recovered \$265,844.01. This is less than defendant's 998 Offer. Defendant's 998 Offer is therefore presumed reasonable. The burden thus shifts to plaintiff to establish defendant did not make 998 Offer in good faith. However, plaintiff does not meet his burden.

Fourth, because the 998 Offer was valid and reasonable, the court must then make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.' " " " "

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)

Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoice attached as Exhibit A to the declaration of Randall R. Wilson. The court observes instances where the work appears to be duplicative and an excessive number of hours are billed for what should be relatively

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straight-forward tasks. The court determines that 116.1 hours are reasonable for Randall R. Wilson.

The court must next address whether the request for \$595 per hour by Randall R. Wilson is reasonable. Determining the reasonable amount of attorneys' fees is known as the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.) Moreover, “[t]he court may apply a multiplier based on contingent risk, exceptional skill, or numerous other factors. [Citation.] There is no magic formula; any one factor may justify an enhancement.” (*Sonoma Land Trust v. Thompson* (2021) 63 Cal.App.5th 978, 986.)

The court has carefully reviewed the declaration of counsel and finds the hourly rate of \$400 per hour by Randall R. Wilson is reasonable for similar legal services within Placer County. The court declines to issue a multiplier.

Accordingly, plaintiff’s motion is granted in the reduced amount of \$46,440.00 for attorney’s fees.

3. S-CV-0053141 HOSTLER, GRACE v. TERNAVSKY, ALEX

Defendant’s Motion to Compel Plaintiff Grace Hostler’s Attendance at Continued Deposition

Defendant’s unopposed motion to compel plaintiff Grace Hostler’s attendance at continued deposition is granted. (Code Civ. Proc., § 2025.450.) Plaintiff shall appear for deposition within 20 days after service of the order after hearing.

No sanctions were sought in the notice of motion and thus the court declines to impose sanctions on plaintiff or her counsel of record.

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